DISCLAIMER: This is an interim text of the non-confidential version of the commitments in Case M.11578 – BOEING / SPIRIT. Parts of this text have been edited to ensure that confidential information is not disclosed; those parts are enclosed in square brackets. The text is made available for information purposes only and does not constitute an official publication. The full text of the decision and the commitments in Annex will be published on DG Competition's website.

Subang Commitments

COMMITMENTS TO THE EUROPEAN COMMISSION

Case M.11578
BOEING/SPIRIT

September 22, 2025

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Case M.11578 – BOEING/SPIRIT
COMMITMENTS TO THE EUROPEAN COMMISSION

Pursuant to Article 6(2) of Council Regulation (EC) No 139/2004 (the "***Merger Regulation***"), The Boeing Company hereby enters into the following commitments (the "***Subang Commitments***") vis-à-vis the European Commission (the "***Commission***") with a view to rendering its proposed acquisition of sole control over Spirit AeroSystems Holdings, Inc. (the "***Concentration***") compatible with the internal market and the functioning of the EEA Agreement.

This text shall be interpreted in light of the Commission's decision pursuant to Article 6(1)(b) of the Merger Regulation to declare the Concentration compatible with the internal market and the functioning of the EEA Agreement (the "***Decision***"), in the general framework of European Union law, in particular in light of the Merger Regulation, and by reference to the Commission Notice on remedies acceptable under Council Regulation (EC) No 139/2004 and under Commission Regulation (EC) No 802/2004 (the "***Remedies Notice***").

Section A: Definitions

(1) For the purpose of the Subang Commitments, the following terms shall have the following meaning:

Affiliated Undertakings: Undertakings controlled by the Committing Parties and/or by the ultimate parents of the Committing Parties, whereby the notion of control shall be interpreted pursuant to Article 3 of the Merger Regulation and in light of the Commission Consolidated Jurisdictional Notice under Council Regulation (EC) No 139/2004 on the control of concentrations between undertakings (the "***Consolidated Jurisdictional Notice***").

Airbus: Airbus SE.

Airbus Subang Business: All assets used in connection with the performance by Spirit of its obligations under its contracts with Airbus operated or performed by Spirit in Subang, Malaysia.

Assets: The assets that contribute to the current operation or are necessary to ensure the viability and competitiveness of the Divestment Business as indicated in Section B of the Subang Commitments, and Schedule 1 to the Subang Commitments.

Boeing: The Boeing Company.

Closing: The transfer of the legal title to the Divestment Business to the Purchaser.

Closing Period: The period of [time period] from the Effective Date.

Committing Parties: Boeing and/or Spirit, as applicable. This includes also any legal successors of the Committing Parties.

Confidential Information: Any business secrets, knowhow, commercial information not in the public domain, or any other information of a proprietary nature that is not in the public domain.

Conflict of Interest: Any conflict of interest that impairs the Trustee's objectivity and independence in discharging its duties under the Subang Commitments.

CTRM: Composites Technology Research Malaysia Sdn. Bhd, which is 100% owned by DRB-HICOM Berhad, a publicly listed Malaysian conglomerate.

Divestment Business: The business or businesses as defined in Section B of the Subang Commitments and Schedule 1 which the Committing Parties will divest.

Effective Date: The date of adoption of the Decision.

Hold Separate Manager: The person appointed by Spirit for the Divestment Business to manage the day-to-day business under the supervision of the Monitoring Trustee.

Key Personnel: All personnel necessary to maintain the viability and competitiveness of the Divestment Business, as listed in Schedule 1 to the Subang Commitments, including the Hold Separate Manager(s).

Monitoring Trustee: One or more natural or legal person(s) approved by the Commission and appointed by the Committing Parties, and who has/have the duty to monitor the Committing Parties' compliance with the conditions and obligations attached to the Decision.

Personnel: All staff employed by Spirit Malaysia at Closing.

Purchaser: CTRM.

Purchaser Criteria. The criteria laid down in paragraph 17 of these Commitments that the Purchaser must fulfil in order to be approved by the Commission.

Schedule: The schedule to the Subang Commitments describing the Divestment Business in more detail.

Subang SPA: The Share Purchase Agreement entered into between Spirit and CTRM on August 8, 2025.

Spirit: Spirit AeroSystems Holdings, Inc.

Spirit Malaysia: Spirit AeroSystems Malaysia Sdn Bhd.

Transaction: Boeing's acquisition of Spirit.

Trustee: The Monitoring Trustee.

(2) Should issues arise relating to the interpretation of terms listed in paragraph 1 of the Subang Commitments or terms not defined, the Commission will retain the interpretation that is most favorable for an effective implementation of the Subang Commitments.

Section B: The commitment to divest and the Divestment Business

Commitment to divest

(3) In order to maintain effective competition, the Committing Parties commit to divest, or procure the divestiture of the Divestment Business as a going concern to CTRM on terms and conditions approved by the Commission.

(4) The Committing Parties shall be deemed to have complied with this commitment if pursuant to the Subang SPA, Spirit sells the Divestment Business to the Purchaser within the Closing Period.

Structure and definition of the Divestment Business

(5) The Divestment Business consists of the entirety of Spirit's site in Subang (Malaysia) as operated and held by Spirit Malaysia. For the avoidance of doubt, this shall include the Airbus Subang Business.

(6) The legal and functional structure of the Divestment Business as operated to date is described in the Schedule. The Divestment Business, described in more detail in the Schedule, includes the transfer of all assets and staff that contribute to the current operation or are necessary to ensure the viability and competitiveness of the Divestment Business. In particular:

(a) all tangible and intangible assets (including, if any, products under development and related rights, intellectual property rights, and know how) owned and held by Spirit Malaysia;

(b) all licenses, permits and authorizations issued by any governmental organization for the benefit of the Divestment Business;

(c) all contracts, leases and commitments of Spirit Malaysia;

(d) all customer, credit and other records of Spirit Malaysia; and

(e) all Personnel.

(7) In addition, the Divestment Business includes the benefit, for a transitional period of up to [time period], unless earlier terminated, after Closing and at [cost structure] of all arrangements under which the Committing Parties or their Affiliated Undertakings supply products or services to the Divestment Business or of any other current or new arrangements which are necessary for the viability of the Divestment Business, as detailed in the Schedule, unless otherwise agreed with the Purchaser and with the approval of the Commission.[1] Strict firewall procedures shall be adopted so as to ensure that any competitively sensitive information related to, or arising from such supply arrangements (for example, product roadmaps) will not be shared with, or passed on to, anyone outside the relevant operations.

[1] These include IT, aftermarket services, finance, product quality, procurement and program arrangements.

Section C: Related commitments

Preservation of viability, marketability and competitiveness

(8) From the Effective Date until Closing, the Committing Parties shall preserve or procure the preservation of the economic viability, marketability and competitiveness of the Divestment Business, in accordance with good business practice, and shall minimize as far as possible any risk of loss of the competitive potential of the Divestment Business. In particular, the Committing Parties, undertake:

(a) not to carry out any action that might have a significant adverse impact on the value, management, viability, or competitiveness of the Divestment Business or that might alter the nature and scope of activity, or the industrial or commercial strategy or the investment policy of the Divestment Business;

(b) to make available, or procure to make available, sufficient financial and other resources needed for the development of the Divestment Business, including the development of pipeline products or services where relevant, on the basis of the continuation of the existing business plans;

(c) to take all reasonable steps, or procure that all reasonable steps are being taken, to assist the Divestment Business in the process of IT migration and/or IT separation until the full process is completed;

(d) to the extent the Divestment Business includes any licenses, permits and authorizations issued by any governmental organization or any other third party/parties for the benefit of the Divestment Business, to take all reasonable steps, or procure that all reasonable steps are being taken, to obtain consent from any governmental organization or any other third party/parties for all required licenses, permits and authorizations; and

(e) to take all reasonable steps, or procure that all reasonable steps are being taken, including appropriate incentive schemes, to encourage all Key Personnel to remain with the Divestment Business, and not to solicit or move any Personnel to Spirit's remaining business. Incentives schemes should not be linked to the sale of the Divestment Business within a certain period or to the sale price of the Divestment Business. Where, nevertheless, individual members of the Key Personnel exceptionally leave the Divestment Business, the Committing Parties shall provide a reasoned proposal to replace the person or persons concerned to the Commission and the Monitoring Trustee. The Committing Parties must be able to demonstrate to the Commission that the replacement is well suited to carry out the functions exercised by those individual members of the Key Personnel. The replacement shall take place under the supervision of the Monitoring Trustee, who shall report to the Commission.

Hold-separate obligations

(9) The Committing Parties commit, subject to paragraph 11 of the Subang Commitments, from the Effective Date, until Closing, to keep, or procure to keep, the Divestment Business separate from the businesses the Committing Parties are retaining and to ensure that unless explicitly permitted under the Subang Commitments or as obligated under transitional services after Closing, (i) management and staff of the businesses retained by the Committing Parties have no involvement in the Divestment Business; and (ii) the Key

Personnel and Personnel of the Divestment Business have no involvement in any business retained by the Committing Parties and do not report to any individual outside the Divestment Business.

(10) Until Closing, the Committing Parties shall assist the Monitoring Trustee in ensuring that the Divestment Business is managed as distinct and saleable entities separate from the business which the Committing Parties are retaining. Immediately after the adoption of the Decision, the Committing Parties shall appoint a Hold Separate Manager. The Hold Separate Manager shall be the current head of the Divestment Business and shall be part of the Key Personnel. If the Hold Separate Manager is not the head of the Divestment Business at the time of the submission of the Subang Commitments, the appointment should occur in agreement with the Commission. The Hold Separate Manager shall manage the Divestment Business independently and in the best interest of the business with a view to ensuring its continued economic viability, marketability and competitiveness and its independence from the businesses retained by the Committing Parties. The Hold Separate Manager shall closely cooperate with and report to the Monitoring Trustee. Spirit shall ensure that the Hold Separate Manager is available for an initial call with the Monitoring Trustee and the Commission, as well as to discuss any significant matter at the request of the Monitoring Trustee or the Commission during his/her mandate. The Monitoring Trustee or the Commission can discuss any matter relevant for the implementation of the Subang Commitments with the Hold Separate Manager without the presence or explicit agreement of representatives of the Committing Parties. The Hold Separate Manager should provide all information requested by the Commission, including confidential information.

(11) Within a reasonable period after the Effective Date, the Committing Parties shall provide a detailed work plan on the implementation and scope of the hold-separate obligations to the Monitoring Trustee for its review and approval.

(12) Any replacement of the Hold Separate Manager shall be subject to the procedure laid down in paragraph 8(e) of the Subang Commitments. The Commission may, after having heard the Committing Parties, require the Committing Parties to replace the Hold Separate Manager. The Hold Separate Manager shall not be employed by the Committing Parties for a period of two years (2) after Closing.

Ring-fencing obligations

(13) The Committing Parties shall implement, or procure to implement, all necessary measures to ensure that they do not, after the Effective Date, obtain any Confidential Information relating to the Divestment Business and that any such Confidential Information obtained by Spirit before the Effective Date will be eliminated and not be used by the Committing Parties. This includes measures vis-à-vis Spirit's appointees on the supervisory board and/or board of directors of the Divestment Business. In particular, the participation of the Divestment Business in any central information technology network shall be severed to the extent possible, without compromising the viability of the Divestment Business. All personnel in Spirit's remaining business who have had access to Confidential Information relating to the Divestment Business shall sign non-disclosure agreements preventing them from using or disclosing any such information. To that effect, within two weeks of the Effective Date, the Committing Parties shall provide a detailed work plan on the implementation and scope of the ring-fencing measures and confidentiality obligations to the Monitoring Trustee for its review. The Committing Parties may obtain or keep information relating to the Divestment Business which is reasonably necessary

for the divestiture of the Divestment Business or the disclosure of which to Boeing is required by law.

Transitional obligations

(14) Until the end of the term of the relevant obligations, the Committing Parties shall fulfil and respect its obligations under any and all of the agreements between Spirit and the Purchaser, as detailed in the Schedule.

Non-solicitation obligation

(15) The Committing Parties undertake, subject to customary limitations, not to solicit, and to procure that Affiliated Undertakings do not solicit, the Key Personnel transferred with the Divestment Business for a period of two (2) years after Closing.

Non-reacquisition obligation

(16) In order to maintain the structural effect of the Subang Commitments, the Committing Parties shall, for a period of 10 years after Closing, not acquire, whether directly or indirectly, the possibility of exercising influence (as defined in paragraph 43 of the Remedies Notice, footnote 3) over the whole or part of the Divestment Business, unless, following the submission of a reasoned request from the Committing Parties showing good cause and, accompanied by a report from the Monitoring Trustee (as provided in paragraph 49 of the Subang Commitments), the Commission finds that the structure of the market has changed to such an extent that the absence of influence over the whole or part of Divestment Business is no longer necessary to render the proposed concentration compatible with the internal market.

Section D: The Purchaser

(17) In order to be approved by the Commission, the Purchaser must fulfil the following criteria:

a. The Purchaser shall be independent of and unconnected to the Committing Parties and their Affiliated Undertakings (this being assessed having regard to the situation following the divestiture). In addition, the Purchaser should not be the Seller in the Concentration nor any of its Affiliated Undertakings.

b. The Purchaser shall have the financial resources to maintain and develop the Divestment Business as a viable and active competitive force in competition with the Parties and other competitors. In particular, the Purchaser shall not be excessively leveraged, shall have sufficient equity and profitability, shall have a turnover significantly larger than the turnover of the Divestment Business, shall have sufficient means to finance the acquisition of the Divestment Business and the execution of its business plan, including investments.

c. The Purchaser shall also have the proven expertise, ability and incentive to maintain and develop the Divestment Business as a viable and active competitive force in competition with the Parties and other competitors.

d. The acquisition of the Divestment Business by the Purchaser must neither be likely to create, in light of the information available to the Commission, *prima facie* competition concerns nor give rise to a risk that the implementation of the

Commitments will be delayed. In particular, the Purchaser must reasonably be expected to obtain all necessary approvals from the relevant regulatory authorities for the acquisition of the Divestment Business.

(18) The final binding sale and purchase agreement (as well as ancillary agreements) relating to the divestment of the Divestment Business shall be conditional on the Commission's approval. Spirit has reached an agreement with Purchaser on August 8, 2025. For the approval, Spirit must be able to demonstrate – and the Commission shall verify – that the Purchaser fulfils the Purchaser Criteria and that the Divestment Business is being sold in a manner consistent with the Commission's Decision and the Commitments including their objective to bring about a lasting structural change in the market.

(19) Any change to the Subang SPA (as well as ancillary agreements) taking place after the Commission's approval referred to in the previous paragraph shall be approved by the Commission, following consultation of the Monitoring Trustee.

Section E: Monitoring Trustee

I. Appointment procedure

(20) The Committing Parties shall appoint a Monitoring Trustee to carry out the functions specified in the Subang Commitments for a Monitoring Trustee. The Committing Parties commit not to close the Concentration before the appointment of a Monitoring Trustee.

(21) The Trustee shall:

(a) at the time of appointment, be independent of the Committing Parties and their Affiliated Undertakings;

(b) possess the necessary qualifications to carry out its mandate, for example have sufficient relevant experience as an investment banker or consultant or auditor;

(c) neither have nor become exposed to a Conflict of Interest;

(d) demonstrate sufficient capacity and resources to take on the Trustee role with all the obligations that the role entails, including to report regularly to the Commission; and

(e) have a sufficient presence in the EU/EEA, and sufficient expertise in the relevant EU/EEA countries covered by the Subang Commitments.

(22) The Trustee shall be remunerated by Boeing in a way that does not impede the independent and effective fulfilment of its mandate.

Proposal by the Committing Parties

(23) No later than one week after the Effective Date, the Committing Parties shall submit the names of at least three natural or legal persons whom the Committing Parties propose to appoint as the Monitoring Trustee to the Commission for approval. The proposal shall

contain sufficient information for the Commission to verify that the persons proposed as Trustee fulfil the requirements set out in paragraph 21 and shall include:

(a) the full terms of the proposed mandate, which shall include all provisions necessary to enable the Trustee to fulfil its duties under the Subang Commitments; and

(b) the outline of a work plan which describes how the Trustee intends to carry out its assigned tasks.

Approval or rejection by the Commission

(24) The Commission shall have the discretion to approve or reject the proposed Trustee(s) and to approve the proposed mandate subject to any modifications it deems necessary for the Trustee to fulfil its obligations. If only one name is approved, the Committing Parties shall appoint or cause to be appointed the person or persons concerned as Trustee, in accordance with the mandate approved by the Commission. If more than one name is approved, the Committing Parties shall be free to choose the Trustee to be appointed from among the names approved. The Trustee shall be appointed within one week of the Commission's approval, in accordance with the mandate approved by the Commission.

New proposal by the Committing Parties

(25) If all the proposed Trustees are rejected, the Committing Parties shall submit the names of at least two more natural or legal persons within one week of being informed of the rejection, in accordance with paragraphs 20 and 25 of the Subang Commitments.

Trustee nominated by the Commission

(26) If all further proposed Trustees are rejected by the Commission, the Commission shall nominate a Trustee, whom the Committing Parties shall appoint, or cause to be appointed, in accordance with a trustee mandate approved by the Commission.

II. Functions of the Trustee

(27) The Trustee shall assume its specified duties and obligations in order to ensure compliance with the Subang Commitments. The Commission may, on its own initiative or at the request of the Trustee or the Committing Parties give any orders or instructions to the Trustee in order to ensure compliance with the conditions and obligations attached to the Decision.

Duties and obligations of the Monitoring Trustee

(28) The Monitoring Trustee shall:

(a) propose in its first report to the Commission a detailed work plan describing how it intends to monitor compliance with the obligations and conditions attached to the Decision;

(b) oversee, in close co-operation with the Hold Separate Manager, the on-going management of the Divestment Business with a view to ensuring its continued economic viability, marketability and competitiveness and monitor compliance by the Committing Parties with the conditions and obligations attached to the Decision. To that end the Monitoring Trustee shall:

i. monitor the preservation of the economic viability, marketability and competitiveness of the Divestment Business, and the keeping separate of the Divestment Business from the business retained by the Committing Parties, in accordance with paragraphs 8, 9, and 10 of the Subang Commitments;

ii. monitor that the Committing Parties make available sufficient resources for the Divestment Business to develop, including for the development of pipeline products or services where relevant (including to reach completion, approval or registration of pipeline products or services), based on the continuation of existing business plans and relevant milestones or of any other future or ongoing projects that are important for the viability of the Divestment Business to the extent that there are any support obligations from the Committing Parties;

iii. to the extent that the Subang Commitments include transitional agreements or the obligation to supply certain inputs, products or services, the Trustee shall monitor the strict compliance with the terms approved and inform the Commission promptly of any changes or compliance problems during the term of such agreements;

iv. supervise the management of the Divestment Business as distinct and saleable entities, in accordance with paragraphs 10 and 12 of the Subang Commitments;

v. with respect to Confidential Information:

- determine all necessary measures to ensure that the Committing Parties do not after the Effective Date obtain any Confidential Information relating to the Divestment Business;

- in particular strive for the severing of the Divestment Business' participation in a central information technology network to the extent possible, without compromising the viability of the Divestment Business;

- make sure that any Confidential Information relating to the Divestment Business obtained by the Committing Parties before the Effective Date is eliminated and will not be used by the Committing Parties; and

- decide whether such information may be disclosed to or kept by the Committing Parties as the disclosure is reasonably necessary to allow the Committing Parties to carry out the divestiture or as the disclosure is required by law;

vi. monitor the splitting of assets and the allocation of Personnel between the Divestment Business and the Committing Parties or Affiliated Undertakings;

(c) propose to the Committing Parties such measures as the Monitoring Trustee considers necessary to ensure the Committing Parties' compliance with the conditions and obligations attached to the Decision, in particular the maintenance

of the full economic viability, marketability or competitiveness of the Divestment Business, the holding separate of the Divestment Business and the non-disclosure of competitively sensitive information;

(d) review and assess potential purchasers as well as the progress of the divestiture process and verify that, dependent on the stage of the divestiture process:

i. potential purchasers receive sufficient and correct information relating to the Divestment Business and the Personnel in particular by reviewing, if available, the data room documentation, the information memorandum and the due diligence process, and by ensuring their access to a confidential version (or a meaningful non-confidential) version of the Subang Commitments, and

ii. potential purchasers are granted reasonable access to the Personnel and Key Personnel;

(e) act as a contact point for any requests by third parties, in particular potential purchasers, in relation to the Subang Commitments;

(f) provide to the Commission, sending the Committing Parties a non-confidential copy at the same time, a written report within 15 days after the end of every month that shall cover the operation and management of the Divestment Business as well as the splitting of assets and the allocation of Personnel so that the Commission can assess whether the business is held in a manner consistent with the Subang Commitments and the progress of the divestiture process as well as potential purchasers. The Committing Parties shall neither receive nor comment on draft reports that the Monitoring Trustee prepares for the purposes of reporting to the Commission;

(g) promptly report in writing to the Commission, sending the Committing Parties a non-confidential copy at the same time, if it concludes on reasonable grounds the Committing Parties are failing to comply with the Subang Commitments. The Committing Parties shall neither receive nor comment on draft reports that the Monitoring Trustee prepares for the purposes of reporting to the Commission;

(h) promptly report in writing to the Commission as soon as it becomes aware of potential exposure to a Conflict of Interest appearing after its appointment, including if it becomes aware of any potential lack of independence or Conflict of Interest with any purchaser participating in the sale process;

(i) to the extent that the Subang Commitments include transitional services agreements, support for projects under development, or the obligation to supply certain inputs, products or services, assess that these obligations are satisfactorily reflected in the sale and purchase agreement and other transaction documents, and inform the Commission promptly of any deviation from the terms included in the Subang Commitments or approved by the Commission or any dispute as to the compliance with such terms during the full duration of the agreement;

(j) promptly report in writing to the Commission risks of degradation of the value of operation of the Divestment Business, or risks that the Purchaser does not or is not able to carry out or maintain investment that are essential for the viability of the Divestment Business.

(k) remain throughout the term of the Subang Commitments a point of contact for the Committing Parties, the Purchaser, the Commission and any other interested third party, in case of issues arising from the implementation and monitoring of the Subang Commitments, including by producing ad hoc reports upon request of the Commission;

(l) assume the other functions assigned to the Monitoring Trustee under the conditions and obligations attached to the Decision.

III. Duties and obligations of the Committing Parties

(29) The Committing Parties shall provide and shall cause their advisors to provide the Trustee with all such co-operation, assistance and information as the Trustee may reasonably require to perform its tasks. The Trustee shall have full and complete access to any of the Committing Parties' or the Divestment Business' books, records, documents, management or other personnel, facilities, sites and technical information necessary for fulfilling its duties under the Subang Commitments and the Committing Parties and the Divestment Business shall provide the Trustee upon request with copies of any document. The Committing Parties and the Divestment Business shall make available to the Trustee one or more offices on their premises and shall be available for meetings in order to provide the Trustee with all information necessary for the performance of its tasks.

(30) Spirit shall provide the Monitoring Trustee with all managerial and administrative support that it may reasonably request on behalf of the management of the Divestment Business. This shall include all administrative support functions relating to the Divestment Business which are currently carried out at headquarters level. Spirit shall provide and shall cause its advisors to provide the Monitoring Trustee, on request, with the information submitted to potential purchasers, in particular give the Monitoring Trustee access to the data room documentation and all other information granted to potential purchasers in the due diligence procedure. The Committing Parties shall inform the Monitoring Trustee on possible purchasers, submit lists of potential purchasers at each stage of the selection process, including the offers made by potential purchasers at those stages, and keep the Monitoring Trustee informed of all developments in the divestiture process.

(31) The Committing Parties shall indemnify the Trustee and its employees and agents (each an "***Indemnified Party***") and hold each Indemnified Party harmless against, and hereby agrees that an Indemnified Party shall have no liability to the Committing Parties for, any liabilities arising out of the performance of the Trustee's duties under the Subang Commitments, except to the extent that such liabilities result from the willful default, recklessness, gross negligence or bad faith of the Trustee, its employees, agents or advisors.

(32) At the expense of Boeing, the Trustee may appoint advisors (in particular for corporate finance or legal advice), subject to Boeing's approval (this approval not to be unreasonably withheld or delayed) if the Trustee considers the appointment of such advisors necessary or appropriate for the performance of its duties and obligations under the Mandate, provided that any fees and other expenses incurred by the Trustee are in line with business practice. Should Boeing refuse to approve the advisors proposed by the Trustee the Commission may approve the appointment of such advisors instead, at the expense of Boeing, after having heard Boeing. Only the Trustee shall be entitled to issue instructions to the advisors. Paragraph 32 of the Subang Commitments shall apply *mutatis mutandis*.

(33) The Committing Parties agree that the Commission may share Confidential Information proprietary to the Committing Parties with the Trustee. The Trustee shall not disclose such information and the principles contained in Article 17(1) and (2) of the Merger Regulation apply *mutatis mutandis*.

(34) The Committing Parties agree that the contact details of the Monitoring Trustee are published on the website of the Commission's Directorate-General for Competition and they shall inform interested third parties of the identity and the tasks of the Monitoring Trustee.

(35) For a period of 10 years from the Effective Date the Commission may request all information from the Committing Parties that is reasonably necessary to monitor the effective implementation of the Subang Commitments.

IV. Replacement, discharge and reappointment of the Trustee

(36) If the Trustee ceases to perform its functions under the Subang Commitments or for any other good cause, including for failure to comply with the requirements in paragraph 28.

(a) the Commission may, after hearing the Trustee and the Committing Parties, require the Committing Parties to replace the Trustee; or

(b) the Committing Parties may, with the prior approval of the Commission, replace the Trustee.

(37) If the Trustee is removed according to paragraph 36 of the Subang Commitments, the Trustee may be required to continue in its function until a new Trustee is in place to whom the Trustee has effected a full hand over of all relevant information. The new Trustee shall be appointed in accordance with the procedure referred to in paragraphs 20-27 of the Subang Commitments.

(38) Unless removed according to paragraph 36 of the Subang Commitments, the Trustee shall cease to act as Trustee only after the Commission has discharged it from its duties after all the Subang Commitments with which the Trustee has been entrusted have been implemented. However, the Commission may at any time require the reappointment of the Monitoring Trustee if it subsequently appears that the relevant remedies might not have been fully and properly implemented.

Section F. Interpretation of the Commitments

(39) In case of a conflict between the wording of the text of the present Commitments and the Subang SPA (and the ancillary documents) executed by the Committing Parties, or the Purchaser, the wording of the Commitments shall prevail, without prejudice to the fact that the interpretation of the Commitments shall take into account the solution that is more favourable to the Divestment Business.

(40) In the event that the Commission requires any amendment, variation or modification to be made to the Subang SPA or ancillary documents as a condition to the delivery of the Decision, the Committing Parties shall use their reasonable best efforts to enter into such documents as are necessary to give effect to reflect such amendment, variation or modification, and, in all other circumstances, the Committing Parties will negotiate with the Purchaser in good faith and use their respective reasonable efforts to accommodate and agree any such amendment, variation or modification and enter into any documents

required to reflect such amendment, variation or modification and in any event, no such amendment, variation or modification shall be implemented without the prior written consent of the Committing Parties.

Section G. Dispute Resolution Procedure

(41) The following dispute resolution procedure applies in case of conflict between the Committing Parties and the Purchaser in relation to the Subang Commitments.

(42) The Committing Parties and the Purchaser shall appoint a panel of experts (the '***Experts***'). This panel shall comprise:

(a) one expert appointed jointly by the Committing Parties;

(b) one expert appointed by the Purchaser; and

(c) one expert appointed by the two experts appointed under (a) and (b) provided that if they fail to appoint the third expert within 15 working days from their appointment, either the Committing Parties or the Purchaser may request the Monitoring Trustee to appoint the third expert, provided that each person so appointed shall be independent of the Committing Parties and the Purchaser, and a suitably qualified and experienced expert.

(43) The process shall be conducted in private and shall be confidential but under supervision of the Monitoring Trustee. The language of the process shall be English.

(44) The Experts shall act on the following basis:

(a) the Experts shall act fairly and impartially;

(b) each party shall submit to the Experts its brief and its submission in relation to the matter in dispute within 5 working days of the Experts' appointment;

(c) the Experts shall decide the procedure to be followed within 5 working days of their appointment, which shall: (i) in the event such dispute arises out of or relates to Sections 3.4 or 3.5 of the Subang SPA, be pursuant to the laws of Malaysia; and (ii) in respect of any other dispute under the Subang SPA, be pursuant to the laws of the State of Delaware, and, in each case, be submitted to the exclusive jurisdiction of the International Chamber of Commerce (the "**ICC**"), pursuant to the dispute resolution framework in Section 12.12 of the Subang SPA;

(d) the Committing Parties and the Purchaser shall assist and provide documentation as the Experts reasonably requires to consider the matters referred to them;

(e) decisions of the Experts shall be based on majority votes of the panel;

(f) the Experts' determination in relation to any matter referred to them shall be given within a maximum period of one month of the Experts' appointment;

(g) the Experts' determination in relation to any matter referred to them shall (save for manifest error or fraud) be final and binding on the Committing Parties and the Purchaser;

(h) any challenge to the Experts' determination shall pursuant to the exclusive jurisdiction of the ICC, in accordance with Section 12.12 of the Subang SPA;

(i) each party shall carry out the actions required to comply with the obligations set out in the Experts' determination in relation to any matter pursuant referred to them within any time-limits specified by the Experts; and

(j) the Experts shall determine how and by whom the costs of the determination in relation to any matter referred to it including the fees and expenses of the Experts are to be paid.

(45) The Commission shall be allowed and enabled to participate in all stages of the dispute resolution procedure by:

(k) receiving all written submissions (including documents and reports, *etc*.) made by the Committing Parties and the Purchaser to the procedure;

(l) receiving all documents exchanged by the Experts with the Committing Parties and the Purchaser to the procedure;

(m) filing any written submissions; and

(n) being present at the hearing(s) and being allowed to ask questions.

(46) The Experts shall forward, or shall order the Committing Parties and the Purchaser to forward, the documents mentioned to the Commission without delay.

(47) The Monitoring Trustee shall receive copies of:

(o) all submissions made by the Committing Parties and the Purchaser in relation to the matters they wish to have resolved by the Experts, on the day when these have been submitted to the Experts;

(p) all other documentation provided by the Committing Parties and the Purchaser, on the day when these have been submitted to the Experts; and

(q) the determination made by the Experts, on the day when the determination has been provided to the Committing Parties and the Purchaser.

(48) This dispute resolution procedure is without prejudice to any other rights and remedies that may be available to the Committing Parties and the Purchaser as the case may be in respect of any breach of the transaction documents. This procedure is also without prejudice to any Commission decision related to the compliance of the Committing Parties with the Subang Commitments.

Section H: The review clause

(49) The Commission may extend the time periods foreseen in the Subang Commitments in response to a request from the Committing Parties, in appropriate cases, on its own initiative. Where the Committing Parties request an extension of a time period, they shall submit a reasoned request to the Commission no later than one month before the expiry of that period, showing good cause. This request shall be accompanied by a report from the Monitoring Trustee, who shall, at the same time send a non-confidential copy of the

report to the Committing Parties. Only in exceptional circumstances shall the Committing Parties be entitled to request an extension within the last month of any period.

(50) The Commission may further, in response to a reasoned request from the Committing Parties showing good cause waive, modify or substitute, in exceptional circumstances, one or more of the undertakings in the Subang Commitments. This request shall be accompanied by a report from the Monitoring Trustee, who shall, at the same time send a non-confidential copy of the report to the Committing Parties. The request shall not have the effect of suspending the application of the undertaking and, in particular, of suspending the expiry of any time period in which the undertaking has to be complied with.

Section I: Entry into force

(51) The Subang Commitments shall take effect upon the date of adoption of the Decision.

[signed]

duly authorized for and on
behalf of Boeing

[signed]

duly authorized for and on
behalf of Spirit

SCHEDULE

(1) The Divestment Business as operated to date has the legal and functional structure described in Spirit AeroSystems Organizational Chart.[2]

(2) In accordance with paragraph 6 of the Subang Commitments, the Divestment Business includes, but is not limited to:

(a) **The following main tangible assets:**

- Tooling and equipment owned by Spirit Malaysia.
- All IT Systems owned by Spirit Malaysia.

(b) **The following main intangible assets**:

- IP rights owned by Spirit Malaysia.
- License to IP rights used by Spirit Malaysia in its operations.
- Legal title to Spirit Malaysia.

(c) All licenses, authorizations, and permits held by Spirit Malaysia at the time of Closing.

(d) **The following main contracts**, **agreements, leases, commitments and understandings:**

- Main contracts, including procurement agreements, sourcing supply agreements, scheduling agreements, and logistics management agreements.[3]
- Leases to real property located in Subang, Malaysia that are leased by Spirit Malaysia.[4]

(e) Records, files, data and other materials, whether in hard copy or electronic form related to or used or held for use in the Divestment Business and in the possession of the Committing Parties.

(f) Personnel of the Subang Divestment Business, *i.e.*, all but [1-5] employees employed by Spirit Malaysia (*i.e.*, [750-1250] employees, including staff, managers, executives and trainees).[5]

(g) Key Personnel of the Subang Divestment Business as set out in Appendix 1 below.[6]

(h) The Divestment Business includes the benefit, for a transitional period of [time period], unless earlier terminated, after Closing and at [cost structure] of all arrangements under which the Committing Parties or their Affiliated

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2 As defined in **Annex 1**.
3 As defined in **Annex 3**.
4 As defined in **Annex 3**.
5 As defined in **Annex 4**.
6 As defined in **Annex 2**.

Undertakings supply products or services to the Divestment Business, as detailed in the applicable purchase agreement and related transitional service agreement, as detailed in the TSA Agreement [7] and the List of Transitional Services [8].

(i) Any other tangible or intangible assets owned by Spirit Malaysia.

(3) The Divestment Business shall not include any other tangible or intangible assets, contracts, records, knowhow or personnel that is not set forth in paragraph 2 of this Schedule.

(4) If there is any asset or personnel which is not be covered by paragraph 2 of this Schedule but which is both used (exclusively or not) in the Divestment Business and necessary for the continued viability and competitiveness of the Divestment Business, that asset or adequate substitute will be offered to CTRM.

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[7] As defined in **Annex 5**.
[8] As defined in **Annex 6**.

APPENDIX 1

List of Key Personnel for the Divestment Business

[…]

List of Annexes to the Subang Commitments Schedule

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